MAL A – English translation (de Ridder 2021, TCMA)

Web: https://oracc.museum.upenn.edu/tcma/P281779/html

Project translation extracted from the ORACC HTML view (rank 3 in our hierarchy; consult only after our own reading).
Each paragraph: [first label – last label of the transliteration lines it translates] text. "## " = section heading.

[o i 1] § 1: If a woman or a wife entered a temple and stole something from the sanctuary in the temple, but it is found in her possession, or they charge or convict her; they will [perform] a divination and ask the god, and they will do as the god tells them.
[o i 14] § 2: If a woman or a wife or a daughter speaks slander or speaks offensive; that woman bears responsibility, but to her husband, sons and daughters they will have no claim
[o i 23] § 3: If a man is sick or dead, and his wife steals something from his house and gives it to another man or woman, they will kill the man's wife and the recipients. If the wife of a man, whose husband is alive, she steals from the house of her husband and she gives it to either man or woman, or to anyone else, the man shall prove charges against his wife and he will impose punishment. The recipient who received from the hand of the woman of the man shall give the stolen goods. A punishment as the man has imposed on his wife they will impose on the receiver.
[o i 46] § 4: If a slave or slave girl receives something from the hand of a wife, of the slave or maid they will cut of their noses and ears. They will restore the stolen goods. The man will cut the ears of his wife. If he releases his wife and does not cut of her ears, they will not cut those of the slave or slave girl, they shall not restore the stolen goods.
[o i 57] § 5: If a wife steals from the house of another man that exceeds the value of 5 mina tin, the owner of the stolen goods shall swear so: "I did not instruct her, saying: "Steal from my house."" If her husband agrees he will give the stolen goods and het will ransom het, cut of her ears. If the husband does not agree to ransom her, the lord of the stolen goods shall take her and cut of her nose.
[o i 70] § 6 If a wife places a depot outside the family, the receiver carries responsibility.
[o i 74] § 7: If a woman put her hand on a man, they will sue her. She will pay 30 minas of lead, and they will hit her with 20 blows.
[o i 78] § 8: If a woman crushes the testicle of a man in a quarrel, they cut of one finger. If a physician bandages it but a second testicle is infected along with and becomes ..., or if she crushes the second testicle in quarrel, they will gauge out both her ...
[o i 88] § 9: If a man lays hand upon a woman, acts upon her as a bill, they will prove charges against him and convict him. They will cut of one finger. If he kissed her, they will draw his lower lip accross the blade of an ax and cut it of.

[o i 97] § 10: If a man or woman, enters the house of a man and they kill the man or woman, they will hand over the killers to the lord of the house. If he chooses so, he will killer them, or if he chooses so, he will come to an agreement with them and take their property. If there is nothing to give in the house of the killers, either a son or daughter [...]
[o ii 7] [If ...] of the king, he will do [...]
[o ii 14] § 12: If a wife passes the main street and a man seizes her(!), (saying): "I want to have sex with you," she may not agree and should protect herself. (If) he seizes her with force and have intercourse, whether they seize him on top of the woman, or that witnesses prove charges and convict him; they will kill that man. The woman will have no sin.
[o ii 25] § 13: If a wife goes out of her house to where a man lives and he fornicates with her, while he knows she is a wife; they shall kill man and woman.
[o ii 30] § 14: If a man fornicates with (another one's) wife, whether in a tavern or in the main street, while he knows she is a wife. They will treat the fornicator as the man declares his wife to be treated.If he does not know she is wife and has intercourse; the fornicator is cleared, the man will prove charges against his wife, and he will do with her as he pleases.
[o ii 41] § 15: If a man seizes a man upon his wife and they prove charge against him and convict him; they will kill them both, there is no liability for him. If he seizes (him) and bring (him) before the king or judge: the will prove charge against him and convict him. If the husband kills his wife, he shall also kill the man. If he cuts of the nose of a wife, he will turn the man into a eunuch, and they will demolish the complete face. But if he releases his wife, he will release the man (as well).
[o ii 58] § 16: If a man [fornicates] with a wife, [... by] her invitation, there will be no punishment for the man. The man will impose a punishment on the woman as his liking. If he forcibly fornicates with her, and they prove charges against him and convict him; his penalty will be as of the wife.
[o ii 67] § 17: If a man says to a man, thus: "everyone has sex with your wife," but there are not witnesses; they will issue an agreement and go the river ordeal.
[o ii 72] § 18: If a man says to a man either in private or in a (public) quarrel, thus: "everyone has sex with your wife," and "I will prove it," but he cannot prove it; they will beat that man 40 (times) with sticks, and he will perform corvee for one month, they shall shave him, and he will give one talent (of lead).
[o ii 82] § 19: If a man secretly start a rumour about his peer, (thus): "everyone sodomizes him," or says to him in a public quarrel, (thus): "everyone sodomizes you and I shall prove it," but he cannot prove it and he has not proven the charges; they will hit that man 50 (times) with sticks and he will perform royal corvee for one month, they shall shave him, and he will give one talent (of lead).
[o ii 93] § 20: If a man sodomizes his peer, and they prove (charges) against him and convict him; they will sodomize him and turn him into a eunuch.
[o ii 98] § 21 If a man beats a woman of the awīlum-class, and he causes her to miscarry. They will prove (charges) against him and convict him. He will give 2 talents 30 minas of lead, and they will hit him 50 (times) with stick. He will perform the corvee of the king for one month.

[o ii 105] If a man, not her father, brother, or son, arranges for a wife to travel with him, he will swear that he did not know that she was wife. He will pay 2 talent of lead to the husband. If he knew that she was wife, he will pay damage and swear, (thus=: “I did not fornicate with her.” However, if the woman declares, (thus): “he did fornicate with me;” the man has (already) paid damages, he will go the river-ordeal; but there is no binding agreement. If he refuses to go the rive ordeal, they will treat him as the husband treated his wife.
[o iii 14] § 23: If a wife takes (another) wife to her house and gives her to a man for fornication and the man knows that she is a wife; they will treat him as one who fornicates with a wife, and they will treat the procuress as husband of a woman treats his wife. And if the husband does nothing against his fornicating wife, they will do nothing against the fornicator and the procuress, they will release them. And if the wife does not know it, and the woman has taken her to her house and she brings the man to her by deceit(?) and he fornicates, if, when leaving the house, declared that she was fornicated with, they will release the woman and she is cleared. They will kill the fornicator and procuress. And if the woman does not declare (it), the man shall impose the penalty he wishes. They will kill the fornicator and procurer.
[o iii 41] § 24: If a wife withdraws herself from her husband and enters the house of (another) Assyrian, either in that city, or in a nearby city , the house that he assigns her, and she stays with the lady of the house and stays overnight three or four times and the lord of the house does not know that a wife sits in his house, and later that woman is seized, the husband of the wife who withdrew herself shall [mutilate] his wife and will [not(?)] take her back.The man’s wife with whom his wife sat down; they will cut of her ear, if he pleases, her husband will give 3 talents 3 minas of lead (as) her price, and if he pleases, he will take back his wife. And if the lord of the house knew that a wife dwelled in his house with his wife, he will pay 3 times. And if he denied, he shall say that he did not know, and they will go to the river ordeal. And if the man of whom the man’s wife dwelled in his house, refuses to go the rove ordeal, he will give three times. And if the man, whose wife withdrew, refuses to go the ordeal; (the other man) is cleared. He will pay the expenses of the river ordeal in full. And if the man, whose wife withdrew herself, does not mutilate his wife; he will take his wife and there will be no sanction.
[o iii 82] § 25: If a woman stays in the house of her father and her husband dies, her brothers did not divide (the estate), and she has no sons. The brothers of her husband who did not dive (the estate) will take whatever jewellery her husband bestowed and is not missing. They make the gods (statues) pass the remainder (of the property); they will prove it and take it. They will not be seized to (go to) the river ordeal or to (take) an oath.
[o iii 95] If a wife dwells in the house of her father and her husband is; if there are sons of her husband they will take whatever jewellery her husband bestowed upon her, but if there are no sons of her husband, she will take it.
[o iii 103] If a woman dwells in the house of her father and her husband keeps coming in; whatever bride gift that her husband gave her, he will take his (own property), but he will not have claim against the belongings of her father's house.
[o iv 1] § 28: If a widow enters the house of her husband and she carries a posthumous son with

her. He will grow up in the house of the man who married her, but a tablet of adoption will not be written. He will not take a share from the house of the man who raised him, but he will not carry responsibility of (any) debt. He will take an inheritance share in according to his portion from the house of his begetter.
[o iv 11] § 29: If a woman has entered the house of her husband; her dowry and whatever she brought from her father's house, and what her father-in-law gave her upon entering, is cleared for her sons. The sons of her father-in-law will not lay claim on it, but if her husband takes control over her, he will give it his sons as he wishes.
[o iv 20] § 30: If a father will bring and present a marriage gift to the house of his son's father-in-law and, but the woman is not given to his son, and his other son whose wife lives in the house of his father is dead, (than) he will give the wife of his dead son for marriage-like protection to his secondary son, who presented to the house of his father-in-law. If the master of the girl, who will receive the bridal gift, does not agree to give his daughter; (if) the father wishes. he will take the daughter-in-law and give her to his son. And (if) he wishes, as much as he presented - tin, gold, whatever not edible - he shall take back the original amount but will not have claim on anything edible.
[o iv 40] § 31: If a man bring to a bridal gift to the house of his father-in-law, and his wife is dead, but there are daughters of his father-in-law available; (if) he wishes, he will marry a daughter of his father in law instead of deceased wife. Or, (if) he pleases he will take the silver that he gave, but they will not give him either barley, sheep or anything edible, (yet) he will receive the silver.
[o iv 50] § 32: If a woman is residing in the house if her father and [...] is given; whether she was taken to the house of her father-in-law or was not taken, she bears responsibility for (any) debt, transgression or punishment of her husband.
[o iv 56] § 33: [If] a woman is residing in the house of her father and her husband is dead and she has no sons, [...], and [(if) she wishes] she will give into marriage-protection to her father-in-law. If her husband and father-in-law are dead, and she has no son; she is widow and can go where she wishes.
[o iv 71] § 34: If a man marries a widow and a contraction is not issues, and she lives his house for two years (at least); she is his wife and will not leave.
[o iv 75] § 35: If a widow has entered the house of a man, everything that what she takes with her belongs to her husband. If a man entered the house of a woman, as much as he brings, belongs to the woman.
[o iv 82] § 36: If a woman is residing in her father's house, or her husband settles her in a house elsewhere, and her husband goes abroad but he left her no oil, no wool, no provisions, or anything else, and he sends her no provisions from abroad; that woman shall remain five years of her husband and she will not sit with another husband. If she has sons, they will be hired and they will eat (of their own), she will wait for her husband, she will not live with (another) husband. If she has no sons, she will wait 5 years for her husband, at the onset of the 6th year she will live with husband of her choice. The husband will not have any claim on her upon returning, she is

cleared for her second husband. If he is delayed over 5 years, but not on his own free will, whether because a qāli seized him and he fled, or because he was arrested for a crime and was delayed, he will prove upon returning, he will give a woman comparable to his wife, but will take his (own) wife (back). And if the king has sent him to another country and he is delayed beyond five years, his wife will wait for him and will not live with (another) husband. And if she lives with (another) husband before the five years (are completed), and bears a child because she did not wait according to the decree but was married; (her first husband) will take her and her offspring.
[r v 15] § 37: If a man leaves his wife, and if he wishes, he can give her something, (but) if he does not wish to, he will give her nothing and she will leave empty-handed.
[r v 20] § 38: If a woman is residing in the house of her father and her husband has left he; he will take the jewellery that he bestowed upon her, but he will not lay claim on the bride price that he brought It is cleared for the woman.
[r v 26] § 39: If a man has given someone who is not his own daughter to a husband, if (because) previously her father was in debt and she has been made to reside as pledge, but an earlier creditor came forward he will receive full compensation for her price from the one gave the woman. If he has nothing to give, he will take the man who gave her (as slave), but if she was abused before she is cleared for her saviour. If the man who married the woman had a tablet be written for him, or they have a claim against him; he will [compensate] the price of the woman and the giver [is cleared].
[r v 42] § 40: Wives of a man or widows or (all) Assyrian women, who go out into the main street shall [not] have their heads [bared]. Daughters of a man [...] either a garment of [...], or a garment or [...] are veiled. Their veiled heads, whether [widows], [wives], or [or (all) Assyrian women] are [not] veiled. When they go in the main street [...] they shall be veiled. A concubine who goes out with her mistress in the main thoroughfare will be veiled. A married qadištu-priestess will be veiled in the main thoroughfare, an unmarried one will leave have her head bared in the main thoroughfare and not veil it. A prostitute will not be veiled, her head is bared. Whoever sees a veiled prostitute will seize her, secure witnesses, and bring her to the palace entrance. They will not take her jewellery but the one who seized her will take her clothes and they will hit her with 50 blows and will pour liquid bitumen over her head. And if a man sees a veiled prostitute and let her go and does not bring her to the palace, they will hit that man with 50 blows. His bailiff will take his cloth and they will pierce his ears, threat them together on a chord and bind it at his back. He will perform the corvee for the king for one month. Slave women shall not be veiled; the one who sees a veiled slave will seize her. They will carry her to the palace entrance, and they will cut of her ears and the one who arrested her will take her clothing. If a man sees a veiled woman and let her go, does not arrest her, and does not bring her to the palace, they will prove charges and convict him. They will beat 50 (time) with stick, they will pierce his ears and thread them on a chord and bind them on his back, his plaintiff will take his clothes, and he will perform duty of the king for one month.
[r vi 1] § 41: If a man veils his concubine, he will let 5 (ot) 6 of his peers be present. He will veil her in their presence and say (thus): “she is my wife”; She is his wife. A concubine who is not

veiled in the presence of people and of whom her husband did not declare, (thus): “she is my wife”; she is not a wife, but a concubine. If the husband dies and there are no sons of the veiled woman, then the sons of the concubine will (legally) be the sons (of the decease man), and they will take a share (of the inheritance).
[r vi 14] § 42: if a man poured out (aromatic) oil over the head of a girl of the awīlu-class on a public holiday or brings dishes at a banquet; they will not give anything in return.
[r vi 19] § 43: if a man poured out (aromatic) oil over the head, brings dishes, and the son to whom he assigned the wife died or fled; he will give to one of his remaining sons he wishes, from the biggest to the smallest of at least ten years old. If the father is dead and the son to whom he assigned the wife died, a son of the deceased son of at least ten years will marry her. If the sons are less than ten years, the father will give her to whom he likes, but if he wishes he will make an equal return. If there is no son, he will return as much as he received; precious stones, and whatever is not edible. But he will not return that what is edible.
[r vi 40] § 44: If there is an Assyrian or an Assyrian woman that lives as a pledge in a man’s house, for as much as his price, and he is taken for the full value; he shall beat him, shear him, and pierce his ears.
[r vi 46] § 45: If a woman is given (in marriage), but the enemy took her husband hostage, and she has not father-in-law or son; she will wait 2 years for her husband. During these 2 year, if there is not food; she will come (forward) and declare it so. [If] she is a villager belonging to the palace, then her father shall feed her, and she will perform his labour. [If she is a wife] of the hupšu-class [...] will feed her and she will do his labour. [If she is a man’s wife, of whom] field and [house ...], she will come forward and [speak to] the judges, (thus): “[There is nothing] to eat.” The judges will question the mayor and the noblemen of the city about the current value of a field in that city, and they will give her a field and house in order to sustain herself for 2 years. She lives there, and they will write her a tablet. She will complete 2 years, and thereafter she can live with a husband of her choice. They will write her tablet as that of a widow. If later her lost husband returns to the country, he will take his wife who married outside the family but will not lay claim to the sons she later bore him; her later husband will take them. The field and house that she gave for sustaining herself for the full price outside (her family); if it is not in the royal holing, then he will give and take it. And if he does not return but died in another land, the king will give his field and house to whom he wishes.
[r vi 89] § 46: If a woman whose husband is dead, does not go out of the house upon the dead of her husband; if her husband has not organized anything for her in writing, she will live in the house of a son of her choice and the sons of her husband will feed her. They will issue her the feeding and drinking like that of a daughter-in-law whom they love. If she is a second (wife) and has no son (of her own), she will live one son (of her husband) and they shall provide for her commonly. If she has sons but the sons of the previous wife do not agree to care for her, she will live with her own sons. Her own sons will feed her, and she will perform their labour. And if there is one amongst the sons of her husband who marries her, [the one who marries here will feed her, and her own sons] will not feed her.

[r vii 1] § 47: If a man or woman performed witchcraft and were caught in the act; they will prove charges against them and convict them, they will kill the one who committed witchcraft. A man who sees witchcraft performed or heard if from the mouth of a witness of witchcraf, (who) said to him: “I have seen it”; the hearsay-witness will come forward and speak to the king. If the eyewitness denied that what (the hearsay-witness) said to the king, he will speak in the presence of Kusarikku: “he surely told me.” He is cleared, but the eyewitness who reported it and then denied it, the king will keep interrogating as long as he deems necessary and will reveal his intentions. An exorcist will have him declare, when they make a purification, and (the exorcist) will say: “they will not release you from the oath that you swore to the king and his son. You are sworn by the wording of the tablet of which you swore to the king and his son.”
[r vii 32] § 48: If a man <wants to give> his debtor’s daughter <into marriage>, who lives as pledge resides in his house, he will ask her father; if her father does not agree, he will not give her. If her father is dead, he will ask permission to one of her brothers, and (the brother) will speak with her (other) brothers. If a brother says: “I will redeem my sister in one month”; if he does not redeem her in one month, the creditor will do as he wishes, clear her, and give her to a husband. [...] according to [...] he will give her. [...].
[r vii 53] § 49: [...] like a brother [...] and if the prostitute is dead, because her brother will say ... Brother(s?) will divide shares (of the inheritance) [with] the brothers of their mother.
[r vii 63] § 50 [If a man] beat [a man’s wife and causes her] an abortion; a man’s wife [...] they will treat him as he treated her, he will fully compensate of a life for her foetus. And if that woman is dead, they will kill the man, but will fully compensate for her foetus. And if that woman’s husband has no son and his wife whom he beat aborted her foetus; they will kill her assailant for her foetus. If her foetus was a baby girl, he will only fully compensate for a life.
[r vii 82] § 51: If a man beat a man’s wife, who does not raises a child, and he caused her an abortion; it is an offense and he will pay 2 talents of lead.
[r vii 87] § 52: If a man beat a prostitute and caused her an abortion; they will retaliate a blow for a blow and he will fully compensate for a life.
[r vii 92] § 53: If a woman caused her own abortion, they proved charges against her and convicted her; they will impale her and not burry her. If she died because of her abortion they shall impale her and not bury her. If one hides a woman who caused her abortion [...] they said [...].
[r vii 109] § 54: [if ...] are not [...] slave women [...].
[r viii 6] § 55: [If] a man forcibly seized and raped a nubile girl, that lives in the house of her father, [...] who is not betrothed(?), whose womb(?) is not opened, is not married, of whom her father’s house has not acquired any claim, wether it was in the inner city or in the open country, whether it was in the main street, in the granary, or during city festival; nubile girl’s father will take the wife of the fornicator of the young girl and give her to be raped- He shall not return her to her husband but take her. The father will give his fornicated daughter to the fornicator in marriage protection. If there is no wife, the fornicator will give three times the silver of the value of the girl to her father. The fornicator will marry her and will not reject her. If the father does not

like it, he will receive 3 times the price of the girl and give his daughter to whom he wants.
[r viii 42] § 56: If a nubile girl gives herself to a man, the man will swear, and they will not lay claim to his wife. The fornicator will give three times the silver, price of the nubile girl. The father shall do with his daughter as he wants.
[r viii 50] § 57: Whether beating or [...] of the man's wife, [...] written on the tablet [...].
[r viii 54] § 58: From all punishments, [...] cutting [...] and ... [...] as that [...].
[r viii 58] § 59: In addition to the offenses of [the man's wife] that [were written] on a tablet, the man [will beat] his wife, sheave her, mutilated her ears, or strike her. It is not an offense.
[r viii 64] Month Ša-sarrāte, 2nd day, eponymy of Saggiu.

Edited by Jacob Jan de Ridder, 2021, for the Archival Texts of the Middle Assyrian Period project and released under the Creative Commons Attribution Share-Alike license 3.0. Please cite this page as http://oracc.org/tcma/assur/P281779.